ORDER BY FRANK L. POLK

UNDER AUTHORITY OF EXECUTIVE ORDER OF

DECEMBER 3, 1918.

BUREAU OF RARE AND LIBRARY
MAR 14 1919
DEPARTMENT OF STATE

AN ORDER REJECTING THE BID OF BUELL HOLLISTER AND HIS ASSOCIATES, GEORGE H. FLINN, EDWARD M. McILVAIN, ERNEST HARVIER, CHARLES B. MACDONALD, W. A. WILBUR, AND A.P. MILLER, of $100,500.00 FOR 1000 SHARES, BEING THE ENTIRE ISSUE OF THE CAPITAL STOCK OF GERHARD & HEY, INC., AND CERTAIN OTHER PROPERTY, REAL AND PERSONAL, TANGIBLE AND INTANGIBLE, HEREINAFTER FULLY SET FORTH, ALL OF WHICH WAS OFFERED FOR SALE AT PUBLIC AUCTION ON MONDAY, JANUARY 27, 1919, AT 11 O'CLOCK A.M. PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS TH[illegible]

By virtue of the authority vested in the President by "An Act to define, regulate and punish trading with the enemy, and for other purposes," approved October 6, 1917, known as the "Trading With the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other purposes," approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by the Executive Order No. 3016 and signed by the President under the third day of December, 1918, I hereby, in the public interest, make the following determination and order:

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The Alien Property Custodian having offered at public sale at the main office of Gerhard & Hey, Inc., 21-24 State Street, in the City of New York, N.Y. at eleven o'clock A.M. on Monday, January 27, 1919, the following described property:

> One thousand (1000) shares (being the entire issue) of the capital stock of Gerhard & Hey, Inc., a New York corporation, and every right, title and claim to the following property, to-wit:
>
> All and singular the property, real and personal, tangible and intangible, cash in bank, bills, notes, and accounts, and other receivables and rights, claims, titles interests, office furniture and fixtures, and assets and effects of every kind and description whatsoever, wheresoever situated or located or operating in the United States, heretofore held, possessed, or enjoyed by or on behalf of or for the benefit of, or in the name of Gerhard & Hey, a co-partnership, doing business in New York City and elsewhere in the United States, including the good will of said co-partnership as a going concern; and also all accretions, accumulations and additions thereto, and income and profits derived therefrom by or in the hands of Gerhard & Hey, Inc. a New York corporation, to which corporation all of said property was on, to-wit: July 29, 1915, transferred and attempted to be assigned, and conveyed by one Franz C. Walter, purporting to act as Attorney in fact for said Curt Oelssner and Walter Paul Oelssner; and also every right, title and claim for damages or compensation or otherwise against said Gerhard & Hey, Inc., and said Franz C. Walter, and any and all others based upon, or growing out of all or any of said property, or the transfer and delivery thereof, to said Gerhard & Hey, Inc., or based upon or growing out of any subsequent use or disposition of said property, or any part thereof, or based upon or growing out of any income or profits derived therefrom or additions or accumulations thereto.

That at said sale Buell Hollister and his associates, George H. Flinn, Edward M. McIlvain, Ernest Harvier, Charles B. Macdonald, W. A. Wilbur and A. P. Miller were the highest bidders, having bid the sum of $100,500. at said sale,

It is therefore ORDERED that the Alien Property Custodian, be, and he hereby is authorized and shall have the right to reject all bids at said sale, including the bid of Buell Hollister and his associates, George H. Flinn, Edward M. McIlvain, Ernest Harvier,

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Charles B. Macdonald, W. A. Wilbur and A. P. Miller, and to resell said property, or make other disposition thereof in accordance with the provisions of the "Trading with the Enemy Act" as amended, and Executive Orders and Proclamations issued pursuant thereto.

The reason for the foregoing Order is that the price bid for said property by the said Buell Hollister and his associates, George H. Flinn, Edward M. McIlvain, Ernest Harvier, Charles B. Macdonald, W. A. Wilbur and A.P. Miller, of $100,500, is inadequate, and not the fair value of the property offered for sale.

Done in the District of Columbia, the 13th day of March, in the year of our Lord One Thousand Nine Hundred and Nineteen.

Francis Bell

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